

The Clone Has No Legal Standing

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The tribunal does not dispute the memories. It accepts, on the neural scan alone, that the clone remembers a childhood bedroom, a mother's specific voice, the exact shape of a grief from four years before the duplication, all of it continuous and unbroken and indistinguishable under every test the tribunal knows how to administer from the original's own recollection of the same events. The debts transfer without argument; a debt attaches to a pattern of obligation the clone plainly inherited along with everything else, and creditors are not sentimental about which body answers the phone. What does not transfer, and what occupies the tribunal for the entire second day, is the health coverage, the pension contributions, and the seniority accrued at a firm that has already, efficiently, updated its records to reflect one employee rather than two.

The company's counsel does not argue that the clone lacks an inner life. That argument was tried in an earlier case and lost badly, once it became clear how easily it could be turned around and asked of the original. Instead counsel argues something narrower and, procedurally, much stronger: that employee benefits attach to a continuous employment record verified by specific administrative events, badge issuance, onboarding paperwork, a start date logged in a system that has no field for "also, independently, this." The clone has every memory of the onboarding. It does not have the database entry the onboarding produced, and the tribunal, weighing four thousand years of philosophy of personal identity against one HR system's foreign key constraint, rules for the foreign key.

The clone is awarded the grief, the debts, the trauma, and a termination notice for a job it remembers starting and, according to the only record anyone will accept as evidence, never started at all. Metaphysics, it turns out, was never the hard problem here. Payroll was, and payroll resolved its uncertainty in an afternoon.